

Part 7

Transitional Arrangements

(Part 7 replaced 77 of 1994 s. 12)

53E. Interpretation

In this Part—

amending Ordinance (修訂條例)—

- (a) in relation to the definition of ***relevant date*** and section 53G, means the Buildings (Amendment) Ordinance 1994 (77 of 1994); and
- (b) in relation to section 53J, means the Buildings (Amendment) Ordinance 2004 (15 of 2004); *(Replaced 15 of 2004 s. 32)*

relevant date (有關日期) means—

- (a) *(Omitted as spent—E.R. 2 of 2012)*
- (b) in section 53G, the date on which sections 12 and 13 of the amending Ordinance come into operation*.

Editorial Note:

* Commencement date: 16 November 1994.

53F. *(Omitted as spent—E.R. 2 of 2012)*

53G. Preservation of right of appeal and determination of pending applications

- (1) Where a person, immediately before the relevant date, has a right of appeal from a decision as regards which he would have had a right of appeal under section 44, had the decision been made after the relevant date (***appealable decision***), but

has not given notice of appeal in respect of that decision, the right of appeal shall, on and from the relevant date, be regarded as a right of appeal conferred by section 44 and may be exercised accordingly.

- (2) Where on the relevant date—
 - (a) a person has given a notice of appeal in respect of an appealable decision but the hearing of the appeal has not commenced, the notice of appeal shall, for the purposes of hearing and determining the appeal, be regarded as a notice of appeal given under section 47;
 - (b) the hearing of any appeal made from an appealable decision has commenced before the authority who was empowered immediately before the relevant date to determine that appeal (*former authority*), notwithstanding anything in the amending Ordinance, but subject to subsection (3), the hearing of the appeal shall be continued and the appeal disposed of as if the amending Ordinance had not been enacted.
- (3) In hearing or determining an appeal pursuant to subsection (2)(b) the former authority shall, as far as circumstances permit, do so in accordance with Part 6 and regulations (if any) made under section 38(1B) and for that purpose any reference in that Part or such regulations to an Appeal Tribunal shall be construed as a reference to the former authority and any order for costs made by the former authority as regards such an appeal shall be regarded as an order for costs made under Part 6.
- (4) Where on the relevant date, an order for costs made in any hearing of an appeal as regards an appealable decision remains unsatisfied wholly or partly, section 51 shall apply as regards such order as if it were an order for costs made under section 51(1).

(Amended E.R. 1 of 2012)

53H. Inclusion of certain registered professional engineers in geotechnical engineers' register

Notwithstanding section 3(7), the Building Authority shall, on payment by a registered professional engineer referred to in section 3(5CA)(a) of the prescribed fees for inclusion and retention of his name in the geotechnical engineers' register, publish in the Gazette and include in the geotechnical engineers' register the name of the registered professional engineer, and section 3(9B) to (16) shall apply accordingly as if his name were included in the geotechnical engineers' register under section 3.

(Added 15 of 2004 s. 33. Amended 20 of 2008 s. 31)

53I. Application for inclusion in geotechnical engineers' register without prescribed qualifications

- (1) A person who applies under section 3(6) within 12 months from the commencement* of this section for inclusion in a geotechnical engineers' register shall be deemed to have satisfied section 3(7)(a) for the purposes of his application if he satisfies the conditions specified in subsection (2).
- (2) The conditions referred to in subsection (1) are that the person—
 - (a) is an authorized person included in the list of engineers or is a registered structural engineer, who—
 - (i) during the period of 7 years immediately preceding the date of his application, has been engaged in or has taken part in site formation works carried out and completed in accordance with this Ordinance;

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* Commencement date: 31 December 2004.

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- (ii) was the authorized person or registered structural engineer appointed under section 4(1) in respect of the buildings works or street works in relation to which the site formation works were carried out; and
 - (iii) satisfies the Building Authority that he has the appropriate geotechnical experience and competence in relation to the site formation works; or
 - (b) is a registered professional engineer in the civil or structural engineering discipline, who—
 - (i) has such practical experience in geotechnical engineering as may be approved by the Geotechnical Engineers Registration Committee; and
 - (ii) for a continuous period of 1 year within the 3 years immediately preceding the date of his application, have had such practical experience in geotechnical engineering gained in Hong Kong as the Geotechnical Engineers Registration Committee considers appropriate.
 - (3) The Building Authority may require the applicant to furnish such information or documents as the Building Authority may reasonably require for the purpose of considering the application.
 - (4) Section 3 shall apply to or in relation to a person who seeks to avail himself of subsections (1) and (2)(a), and in the case where his application is granted, to or in relation to his registration under that section, subject to the following modifications—

- (a) subsections (7) and (7C) of section 3 shall be construed as if paragraph (b) of each of the subsections had been omitted;
 - (b) section 3(9) shall be construed as if for the words “the date of the meeting of the respective Registration Committee at which the application was considered”, there were substituted “the date of receiving the application”;
 - (c) the person shall be deemed to have held the prescribed qualifications referred to in section 3(9D) and (13A) for registration as a registered geotechnical engineer if he remains an authorized person in the list of engineers or a registered structural engineer; and
 - (d) the person shall be deemed to have ceased to hold the prescribed qualifications referred to in section 3(11B) if he ceases to be an authorized person in the list of engineers or a registered structural engineer.
- (5) Regulation 4 of the Building (Administration) Regulations (Cap. 123 sub. leg. A) shall not apply to a person who seeks to avail himself of subsections (1) and (2)(a).
- (6) Section 3 shall apply to or in relation to a person who seeks to avail himself of subsections (1) and (2)(b), and in the case where his application is granted, to or in relation to his registration under that section, subject to the following modifications—
 - (a) the reference in section 3(6A)(b)(ii) to the prescribed fee for retention shall be construed as a reference to a fee of \$855;
 - (b) within 3 years beginning on the date from which the person’s registration becomes effective, the person shall be deemed to have ceased to hold the prescribed qualifications referred to in section 3(11B) if he—

- (i) ceases to be a registered professional engineer in the civil or structural engineering discipline; and
- (ii) has not obtained the prescribed qualifications for inclusion in a geotechnical engineers' register; and
- (c) the reference in section 3(15)(b) to 5 years shall be construed as a reference to 3 years.

(Added 15 of 2004 s. 33)

53J. Transitional provisions for other miscellaneous matters

- (1) Where an application under section 3(6) or 8B(1) was pending immediately before the commencement* of the amendments made to section 3(6A)(a) and (15)(b) or 8B(5) (a) by the amending Ordinance, then the application shall be treated and disposed of under section 3 or 8B as amended by the amending Ordinance, as if the applicant had specified in the application—
 - (a) in the case of an application under section 3(6), a period of 5 years beginning on the date of inclusion of his name in the register concerned, for which he seeks his name to be retained in that register; and
 - (b) in the case of an application under section 8B(1), a period of 3 years beginning on the date of inclusion of his name in the register concerned, for which he seeks registration.
- (2) Where an application under section 3(9B) or (12) was pending immediately before the commencement* of the amendments made to section 3(9B), (13)(c) and (15)(b) by the amending Ordinance, then section 3 and regulation 42 of the Building (Administration) Regulations (Cap. 123 sub. leg. A) in force immediately before that commencement shall continue to apply to and in relation to the application.

- (3) Where an application under section 8C(1) or 8D(1) was pending immediately before the commencement* of the amendments made to section 8C(2)(d) or 8D(2)(b) by the amending Ordinance, then section 8C or 8D and regulation 42 of the Building (Administration) Regulations (Cap. 123 sub. leg. A) in force immediately before that commencement shall continue to apply to and in relation to the application.
- (4) In relation to an application referred to in subsection (3), the Building Authority may seek the advice of the relevant Contractors Registration Committee on the application.
- (5) Notwithstanding the amendments made to section 8 by the amending Ordinance, on and after the commencement† of those amendments—
- (a) section 9A shall apply to and in relation to a decision of a Contractors Registration Committee existing immediately before that commencement as if those amendments had not been made; and
 - (b) a recommendation made by the Contractors Registration Committee which was in force immediately before that commencement shall continue to be in force and have effect for the purpose of section 8B(10).

(Added 15 of 2004 s. 33)

Editorial Note:

* Commencement date: 31 December 2004.

† Commencement date for amendments to section 8(3) and (3A): 31 December 2004;

Commencement date for amendments to section 8(5): 31 December 2005.
